

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA

Tentative Ruling

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**2025CUMM037379: JOLIE BRUNS vs LOS ROBLES REGIONAL MEDICAL CENTER,  
et al.**

**09/16/2026 in Department 21**

**Motion for Protective Order to Exclude Plaintiff's Cumulative and Duplicative Expert  
Witnesses**

**Tentative Rulings.** Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to [courtroom21@ventura.courts.ca.gov](mailto:courtroom21@ventura.courts.ca.gov) before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.) If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**Motion:** Defendant Hazel B. Abaya, M.D.'s Motion for Protective Order to Exclude Plaintiff's Cumulative and Duplicative Expert Witnesses (*Unopposed*)

**Tentative Ruling:**

Defendant Hazel B. Abaya, M.D.'s Motion for Protective Order to Exclude Plaintiff's Cumulative and Duplicative Expert Witnesses is DENIED without prejudice.

Code of Civil Procedure section 2034.250, subdivision (b), authorizes the Court, for good cause shown, to enter an appropriate protective order to protect a party from unwarranted annoyance, oppression, or undue burden and expense, including an order directing a party to reduce its list of retained experts. (Code Civ. Proc., § 2034.250, subd. (b)(6).) Evidence Code section 723 independently permits the Court before or during trial to limit the number of expert witnesses called by a party.

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Plaintiff designated Kevin Shaw, M.D. and Joseph S. Esherick, M.D. as retained experts. Plaintiff's supporting expert declaration states that Dr. Shaw will testify concerning "standard of care, liability, causation and damages" and uses the same description for Dr. Esherick. The descriptions therefore substantially overlap on their face.

Nevertheless, the designation also shows that the two physicians have different professional specialties. Dr. Shaw is board certified in internal medicine, pulmonary medicine, and critical care medicine, whereas Dr. Esherick is board certified in family medicine. Given these differing qualifications, the identical generalized description of the subjects of anticipated testimony does not, standing alone, establish that all testimony the two experts could offer necessarily will be cumulative.

The authorities relied upon by Defendant recognize the Court's discretion to exclude genuinely cumulative expert testimony. In *South Bay Chevrolet v. General Motors Acceptance Corp.* (1999) 72 Cal.App.4th 861, 906, the Court of Appeal affirmed exclusion of a second expert where the expert designation showed that the proposed testimony duplicated testimony already given by the first expert and counsel acknowledged a "substantial overlap" between the two experts. Similarly, *Horn v. General Motors Corp.* (1976) 17 Cal.3d 359, 371-372 upheld exclusion of a fifth expert after four experts had already given the same opinion and the proponent failed to demonstrate that the additional testimony would be anything other than cumulative. *Redondo Beach School Dist. v. Flodine* (1957) 153 Cal.App.2d 437, 449 recognizes the trial court's discretion to limit witnesses addressing a single question and to refuse evidence that is purely cumulative.

These cases support limiting duplicative testimony, but the present record does not establish that Dr. Shaw and Dr. Esherick necessarily will give the same substantive opinions. Unlike *South Bay Chevrolet* and *Horn*, neither expert has testified, there is no record of their actual opinions before the Court, and Plaintiff has made no admission that their testimony will substantially overlap. The present showing consists principally of counsel's generalized expert-designation language.

The Court therefore does not find good cause on the present record to require Plaintiff to withdraw either Dr. Shaw or Dr. Esherick entirely. Plaintiff may utilize both experts only to the extent their testimony concerns distinct subjects, standards of care, medical specialties, causation issues, or other matters that are not substantially duplicative. Nothing in this ruling precludes Defendant from raising an Evidence Code section 352 or 723 objection at trial if the testimony actually offered becomes cumulative.

Defendant Abaya's motion for protective order to exclude plaintiff's cumulative and duplicative expert witnesses is DENIED without prejudice to either refile, or to raise the objection at trial, after additional information is ascertained showing the testimony of the two experts is truly redundant.

Defendant Abaya shall give notice.